

UD-26-000355 CHAVEZ FAMILY TRUST vs WRIGHT, SHAUN - Defendant's Motion to Set Aside Default & Default Judgment - DENIED without prejudice.

County: stanislaus

Department: 23

Hearing date: 2012-04-02

Motion: This matter was continued from July 14, 2026. The Court's minute order from that date indicates that the Court expressed doubt regarding proper service of the moving papers on Plaintiff's counsel. The Court then ordered, inter alia, that Defendant "serve all motion documents along with the continued hearing date on Plaintiff's counsel and file proper proof of service with the Court." (Emphasis added.) A proof of service was belatedly filed on July 29, 2026. (Defendant may wish to note for future reference that a proof of service should be filed at least five court days before any hearing date in accordance with rule 3.1300(c) of the California Rules of Court.) The proof of service fails to indicate that Plaintiff's counsel was served with a notice of the continued hearing date, as required by the Court's July 14, 2026 minute order. Accordingly, the Court concludes that the motion is procedurally defective and DENIES it without prejudice. The following are the tentative rulings for cases calendared before Judge David Hood in Department 24: ***There are no tentative rulings in Department 24*** The following are the tentative rulings for cases calendared before Commissioner Jared D. Beeson in Department 19 located at the Turlock Division at 300 Starr Avenue, Turlock, CA:

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Source SHA-256: 369ce849989135777359b4a83ee2ed7a232e3ec90a84e9a3c689df552cdd8f55

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